

Welcome to Hubeco!

We're delighted to have you here. These Terms of Use are designed to help you understand the guidelines and rules that govern your use of our Platform. Please read them carefully, as they set out your rights and responsibilities when using our Services. By accessing or using Hubeco, you agree to comply with these Terms.

This document is an electronic record in terms of the Information Technology Act, 2000 and rules there under as applicable and the amended provisions pertaining to electronic records in various statutes as amended by the Information Technology Act, 2000. This electronic record is generated by a computer system and does not require any physical or digital signatures.

This document is published in accordance with the provisions of Rule 3 (1) of the Information Technology (Intermediaries guidelines) Rules, 2011 that require publishing the rules and regulations, Privacy Policy, and Terms of Use for access or usage of domain name <https://hubeco.market> (the "**Website**").

Your Service Provider:

These Terms of Use (the "**Terms**") constitute a legally binding agreement between Hubeco Green Ventures Private Limited, its subsidiaries, and affiliates ("**Company**," "**we**," "**our**," or "**us**") and Buyer ("**you**" or "**your**"). These Terms will be effective upon your acceptance of the same (directly or indirectly in electronic form or by means of an electronic record) and will govern the relationship between us and you for the use of our Website <https://hubeco.market>, our Services and any of our other websites, mobile or digital applications, or any other services we offer from time to time by or in connection therewith (together referred to as the "**Platform**" or "**Hubeco**"). The Platform is owned and operated by Hubeco Green Ventures Private Limited having its registered office at H No: 8-2-293/F-II/A/20A, Filmnagar, Jubilee Hills, Shaikpet, Hyderabad, Telangana, India, 500033.

For the purpose of these Terms, wherever the context so requires "**you**" or "**your**" refers to any natural or legal person who has agreed to become the Buyer (including their authorised users) on the Platform by registering with us through their device or any other individual or entity who accesses or interacts with the Platform. For avoidance of doubt, the term "**User**" shall collectively refer to the Buyer and the Vendor. The applicability of these Terms extends to Users regardless of the device type used for accessing our Platform, whether it be a laptop/desktop or a mobile/tablet device.

About the Platform:

The following constitutes the "**Services**":

Hubeco is an innovative e-commerce platform dedicated to connecting B2C and B2B customers (the "**Buyers**") and Vendors (the "**Vendors**") within the sustainable construction and related sectors. The Platform facilitates the sale and procurement of eco-friendly building materials and/or related services.

By providing a comprehensive online marketplace, the Platform gives the access to Buyers to a diverse range of sustainable and eco-friendly building products, backed by detailed product specifications, quality certifications, and relevant accreditations. The Platform ensures that all listed products meet green certification standards, providing peace of mind regarding the environmental impact and reliability of their purchases. Additionally, Buyers benefit from the transparency and flexibility that Platform has to offer, enabling them to secure the best deals.

Acceptance of Terms:

Our role under these Terms is limited to administration and managing the Platform, including any Services made available to you on the Platform.

ACCESSING, BROWSING, OR OTHERWISE USING THE PLATFORM INDICATES YOUR AGREEMENT TO ALL THE TERMS AND CONDITIONS UNDER THESE TERMS, SO PLEASE READ THE TERMS CAREFULLY BEFORE PROCEEDING.

By impliedly or expressly accepting these Terms, you also accept and agree to be bound by our Privacy Policy as amended from time to time. We encourage you to read the [Privacy Policy](#), [Delivery & Shipping Policy](#), and [Return, Refund and Cancellation Policy](#) in conjunction with these Terms to better understand how you can update, manage, export, and delete your information. **If you do not agree with anything provided herein, please do not use or access our Platform and/or Services.**

We reserve the unilateral right to change the particulars contained in these Terms from time to time, without notice to you and in our sole discretion. If we make any such revision in these Terms, we will update the effective date above and the revised Terms shall be effective from such date. You are required to frequently check these Terms and their effective date to understand the terms and conditions that apply to your use of our Services. Your continued use of the Platform and/or Services following such modification constitutes your acceptance of the modified Terms of Use, whether or not you have read them.

Further, we may change, suspend, and/or discontinue the Services at any time, including the availability of any feature, database, and content on the Platform. We may also restrict Users' access to parts and/or all of the Platform without notice in the event of technical disruptions or other similar events and we shall not be liable to the Users in such cases.

1. BUYER'S ELIGIBILITY

- 1.1. We welcome individuals and entities to utilise our Services, subject to adherence to these Terms of Use. To ensure clarity, Buyers, whether a B2B customer or B2C customer, individuals or entities, who use our Platform and Services to buy eco-friendly building materials, must:
 - 1.1.1. be at least 18 years old and capable of entering into a legally binding agreement;
 - 1.1.2. demonstrate the intention and capacity to utilise our Services effectively; and
 - 1.1.3. have the authority to enter into agreements and comply with the terms outlined in these Terms on behalf of the entity, if applicable.
- 1.2. **Prohibited Individuals:**
 - 1.2.1. **Individuals under 18 years old:** Minors under the age of 18 are not eligible to use our Services. If you are under 18, please refrain from using our Platform without appropriate parental or guardian consent.
 - 1.2.2. **Individuals barred from using the Services:** Individuals who have been previously suspended or prohibited from accessing our Services by us or any competent authority are not allowed to use our Platform.
 - 1.2.3. **Individuals engaging in Illegal Activities:** Individuals or entities engaged in or intending to engage in any activity that is illegal under applicable law, including but not limited to fraud, money laundering, and terrorism financing.

- 1.2.4. **Individuals with Conflicting Interests:** Individuals or entities that have conflicts of interest that would prevent them from complying with these Terms or that would pose a risk to the integrity of the Platform and its Users.
 - 1.2.5. **Individuals from Sanctioned Territories:** You are prohibited from using our Platform if you or the business entity you represent is domiciled, registered, or conducts business in any country or territory subject to financial and economic sanctions, trade embargoes, or similar restrictions imposed by Government of India, including but not limited to Pakistan, North Korea, and Syria. This also applies if you are listed as a prohibited, sanctioned, debarred, or denied party by the Directorate General of Foreign Trade (DGFT) of India, the Reserve Bank of India (RBI), the Ministry of External Affairs (MEA), or any other relevant Indian authority. This Clause shall also apply if you or the business entity you represent is domiciled, registered, or conducts business in any country or territory subject to financial and economic sanctions, trade embargoes United Nations, UN Security Council or any other relevant UN agency. You must obtain any required licence or government authorization before accessing our services if you fall under any of these categories.
- 1.3. **Compliance with Laws:**
- 1.3.1. You must comply with applicable laws, regulations, and policies when using our Platform and/or Services. It is your responsibility to ensure that your use of the Platform does not violate any laws or regulations in your jurisdiction.

2. ACCESS OUR PLATFORM AND SERVICES

2.1. Account Registration:

- 2.1.1. To utilise the Service, you must register with us by setting up a Buyer account (the “**Account**”). To create an Account as a Buyer (whether as an individual or an entity), Users must provide accurate, current, and complete information as prompted by the registration form. This includes but is not limited to full name, address, contact number, date of birth, password, and email address.
- 2.1.2. You are responsible for maintaining the confidentiality of your Account credentials and are liable for all activities conducted under your Account. If you have previously registered, you should log in/sign in to your Account using the same credentials provided during the initial registration process.

2.2. Account Verification:

To ensure a secure and reliable Platform, you are required to complete the Account verification process. For B2B Buyers (entities or corporations), the Account verification process will include undergoing a Know Your Customer (KYC) process. This involves uploading company information such as company name, registered address, bank account details, tax details, PAN and providing any additional information prompted by the Platform. For B2C Buyers (individual consumers), the verification process may vary and may include providing identification documents and contact details as requested by the Platform at its sole discretion. Upon successful verification, you will gain access to the Platform.

2.3. Account Security and Update:

- 2.3.1. You are responsible for safeguarding your Account credentials and preventing unauthorised access to your Account. Any unauthorised use of an Account must be reported to the Company immediately for investigation.
- 2.3.2. If you suspect that unauthorised access has been made to your Account, you must notify us immediately by email at info@hubeco.market. We will investigate any alleged unauthorised Account activity. Notwithstanding any other terms pertaining to our right to disable or block access to your Account, we reserve the right to disable or block your Account at any time when it is suspected that unauthorised access has been made to your Account.
- 2.3.3. If you share or allow others to have access to your Account, you assume exclusive liability and responsibility for all activities conducted on your Account, as well as any resulting consequences.
- 2.3.4. You acknowledge and agree that we shall not bear any liability or responsibility for the activities or consequences arising from the use or misuse of any information under your Account.

2.4. Buyer Responsibilities:

You agree:

- 2.4.1. that your country of residence and/or your company's country of incorporation is the same as the country specified in the contact and/or billing address you provide us;
- 2.4.2. to fully comply with all applicable laws and any other contractual terms that govern your use of the Platform (and any related interaction or transaction), including those specific laws applicable to you or your end users in any of your geographical locations;
- 2.4.3. to regularly and autonomously ensure the preservation and backup of all your Content and processed information concerning your Account and Dashboard and any application features, services, or third-party services utilised, connected, presented, or developed by you;
- 2.4.4. to provide your Account information accurately and failure to maintain such accurate information, including having an invalid or expired payment method, may result in the inability to access and use the Services;
- 2.4.5. to maintain the confidentiality of your password and take responsibility for all activities associated with your Account and Dashboard. We retain the right, at our sole discretion, to revoke, reclaim, or modify a username (or first/last name) you choose if we deem, in our judgement, that such username is inappropriate, obscene, or otherwise objectionable;
- 2.4.6. to notify us in writing immediately if you become aware of any disclosure of your password. You are responsible for any activity on our Platform arising out of any failure to keep your password confidential and may be held liable for any losses arising out of such a failure;
- 2.4.7. to not create an Account on behalf of anyone other than yourself without their permission. Additionally, using a username with the intent to impersonate another person, or using a username Account that is subject to the rights of someone else without proper authorization, is not allowed;
- 2.4.8. to not assign or transfer your Account to any other person or entity;
- 2.4.9. to provide proof of identity to access or use the Services in certain cases. Refusal to provide proof of identity may result in denial of access to or use of the Services;
- 2.4.10. that we shall not bear any liability or responsibility for the activities or consequences arising from the use or misuse of any information under your Account, including without limitation, situations where you have neglected to update your mobile phone number and/or email address on the Platform;
- 2.4.11. that in the event of a suspected security breach or misuse of your Account, we reserve the right to request a password change or suspend your Account, without incurring any liability to the Company, for a duration deemed appropriate in the circumstances. We disclaim any responsibility for any loss or damage resulting from your non-compliance with this provision;

- 2.4.12. that we do not provide any legal advice or any recommendation with respect to any laws or requirements applicable to your use or any of your sub-users, or your compliance therewith; and
- 2.4.13. to comply with all applicable laws and use the Services only for lawful purposes.

2.5. **Account Suspension and/or Deletion:**

- 2.5.1. You agree to (a) diligently log out from your Account at the conclusion of each session, and (b) promptly inform us of any unauthorised use of your Account. In the event of a suspected security breach or misuse of your Account, we reserve the right to request a password change or suspend your Account, without incurring any liability to the Company, for a duration deemed appropriate in the circumstances. We disclaim any responsibility for any loss or damage resulting from your non-compliance with this provision.
- 2.5.2. You shall be solely responsible for the accuracy and correctness of all such details/information given by you during Account setup. If we have reason to doubt the correctness of any details/information furnished by you or in case any information furnished by you is found incorrect, false, or misleading, we reserve the right to cancel or suspend your registration permanently or for such period as we deem fit.

3. **CONTENT GUIDELINES**

- 3.1. In utilising the Platform and/or Services, you may upload, post, provide, publish, display, link to, or otherwise share information essential for the Services through the Platform (collectively referred to as **"Content"**). By doing so, you provide us with a worldwide, irrevocable, non-exclusive, royalty-free licence to employ, reproduce, store, adapt, publish, translate, and distribute your Content within the operational scope of the Platform's functionalities. This includes but is not limited to, promotional and advertising purposes across any media now known or hereafter devised. You acknowledge that we may utilise any Content you consistent with our [Privacy Policy](#) on the Platform and you shall not be entitled to any payment or other compensation for such use. It's your responsibility to ensure that the Content abides by applicable laws and any agreement entered into. We aren't responsible for any harm resulting from anyone's access, use, purchase, or downloading of Content, or for any harm resulting from third-party websites. You're responsible for taking the necessary precautions to protect yourself and your computer systems from viruses, worms, Trojan horses, and other harmful or destructive content.
- 3.2. The Content must comply with the Content Standards set out in this Clause. The Content must not-
 - 3.2.1. contain any material that is defamatory, obscene, indecent, abusive, offensive, harassing, violent, hateful, inflammatory, or otherwise objectionable.
 - 3.2.2. promote sexually explicit or pornographic material, violence, or discrimination based on race, sex, religion, nationality, disability, sexual orientation, or age.
 - 3.2.3. infringe any patent, trademark, trade secret, copyright, or other intellectual property or other rights of any other person.
 - 3.2.4. violate the legal rights (including the rights of publicity and privacy) of others or contain any material that could give rise to any civil or criminal liability under applicable laws or regulations or that otherwise may be in conflict with these Terms of Use, or our Privacy Policy.
 - 3.2.5. be likely to deceive any person.
 - 3.2.6. promote any illegal activity, or advocate, promote, or assist any unlawful act.
 - 3.2.7. cause annoyance, inconvenience, or needless anxiety or be likely to upset, embarrass, alarm, or annoy any other person.
 - 3.2.8. impersonate any person, or misrepresent your identity or affiliation with any person or organisation.
 - 3.2.9. involve commercial activities or sales, such as contests, sweepstakes, and other sales promotions, barter, or advertising.
 - 3.2.10. give the impression that they emanate from or are endorsed by us or any other person or entity if this is not the case.
- 3.3. Your Content must not be misleading or unlawful, and must not violate any of these Terms, applicable laws, and regulations, or infringe or misappropriate any rights of any person or entity.
- 3.4. You confirm that you possess and will continue to maintain the complete authority, ownership, licences, consents, and permissions necessary to authorise Platform to access Platform or any part thereof. This authorization allows for the importing, exporting, copying, displaying, uploading, publishing, transmitting, and/or any other utilisation of your Content.
- 3.5. You acknowledge that we may or may not pre-screen all or any part of the Content. However, we retain the right (but are not obligated) to pre-screen, refuse, or remove any Content and/or products from the Platform at any time, for any reason. This includes, but is not limited to, instances where we receive claims, allegations, or complaints from third parties and/or authorities related to such Content, or for no reason at all. However, we do not endorse or guarantee the accuracy, completeness, or reliability of any Content.
- 3.6. You agree that you have obtained all consents and permissions required under all applicable laws, regarding the processing, storing, collection, posting, transmission, and publication of any personal information and/or image or likeness of any person, entity, or property which is part of the Content, and you will adhere to all laws applicable thereto. Further, the Content is (and will continue to be) true, current, accurate, non-harmful, non-infringing upon any third party rights, and in no way unlawful for you to upload, import, export, copy, possess, post, publish, transmit, display or otherwise use, in the country in which you or your Platform's visitors reside.
- 3.7. **Feedback and Reviews:** The following terms constitute **"Feedback Policy"**:
 - 3.7.1. In order to improve customer experience, the Platform implements a mechanism to rate and provide reviews regarding the Vendors and the Products on the Platform and such information shall be available publicly on the Platform.
 - 3.7.2. You may leave ratings and reviews on the Products and services of the Vendors. The Company shall not bear any responsibility for any adverse comment or rating of the Products on the Platform.
 - 3.7.3. If you provide us with any suggestions, comments or other feedback relating to our Services and/or Platform, which may or may not be subject to any Intellectual Property rights (**"Feedback"**), such Feedback shall be exclusively owned by our Company. By providing such Feedback to us, you acknowledge and agree that it may be used by us in order to: (i) further develop, customise, and improve our Services and/or Platform, (ii) provide ongoing assistance and technical support, (iii) contact you with general or personalised platform-related notices and/or interview requests based on your feedback or otherwise, (iv) facilitate, sponsor, and offer certain promotions, and monitor performance, (v) create aggregated statistical data and other aggregated and/or inferred information, which we may use to provide and improve our Services, (vi) enhance our data security and fraud prevention capabilities, and (vii) comply with any applicable laws and regulations.
 - 3.7.4. If you submit any review or Feedback, Hubeco may use such review or Feedback for any purpose without any compensation or obligation to you. We reserve the right to remove any Feedback posted in our public forums for any reason at our sole discretion.
 - 3.7.5. In addition, you (1) represent and warrant that such rating, reviews for the Vendors and Feedback are accurate, complete, and do not infringe on any third-party rights; (2) irrevocably assign to us any right, title, and interest you may have in such reviews or Feedback and (3) explicitly and irrevocably waive any and all claims relating to any past, present, or future moral rights, artists' rights, or any other similar rights worldwide in or to such review or Feedback.

4. PRODUCT INFORMATION

4.1. Information Regarding Products:

- 4.1.1. You understand that the Platform seeks to encourage the use of sustainable and eco-friendly materials, products (the “**Products**”) and related services. Therefore, all the Products listed on the Platform meet strict quality and green certification standards.
- 4.1.2. You further understand that the Platform acts as an intermediary facilitating the sale of Products between the Vendors and Buyers. The Company does not manufacture, inspect, or control the quality of the Products provided by various Vendors registered on the Platform.
- 4.1.3. The Vendor shall provide comprehensive and up-to-date information about each Product to be listed on the Platform, to ensure transparency and reliability for facilitating informed decisions and smooth transactions. This information includes, but is not limited to, the following:
 - 4.1.3.1. *Description*: A detailed description of the Vendor of that Product;
 - 4.1.3.2. *Product Specifications*: A thorough and accurate description of the Products such as product dimensions, weight, and a delimited list of technical specifications.
 - 4.1.3.3. *Brand and Model*: Information about the brand and model of the Products.
 - 4.1.3.4. *Images*: Digitised images accurately depicting the product without additional logos, text, or markings.
 - 4.1.3.5. *Pricing*: Listing price, including any tiered pricing options.
 - 4.1.3.6. *Order Requirements*: Minimum order quantity.
 - 4.1.3.7. *Legal Content*: Text, disclaimers, warnings, notices, labels, green certifications, LCA, EPD’s and other content required by applicable law for the offer, merchandising, advertising, or sale of the product.
 - 4.1.3.8. *Accessory Information*: Identifying information for accessories related to the Product, if available.
 - 4.1.3.9. *Ratings and Reviews*: Ratings and reviews of the product, providing feedback and insights from previous Buyers.
 - 4.1.3.10. *Nearest Vendor Information*: Information on the nearest Vendors to the Buyer’s location for convenience and potentially faster shipping.
 - 4.1.3.11. *Similar Products*: Listings of other Vendors offering similar products, allowing Buyers to compare options and make informed purchasing decisions.
 - 4.1.3.12. *Additional Information*: Any other information required by applicable law.
- 4.1.4. You acknowledge and agree that the Vendors shall be solely responsible for providing accurate and complete information of their Products, as outlined in clause 4.1.3. It is the Vendors’ responsibility to upload and maintain such information when listing their Products on the Platform. The Platform shall not be liable for any inaccuracies, omissions, or misrepresentations in the information provided by the Vendors.
- 4.1.5. The Vendors shall also be responsible for updating the information about the Products or the information about the Vendors themselves as and when required, especially regarding the availability of the Products or otherwise.

4.2. Quality of the Products:

- 4.2.1. The Platform makes no representations or warranties, express or implied, regarding the quality, safety, or legality of the products listed by the Vendors on the Platform. All warranties, if any, related to the products are provided solely by the Vendors.
- 4.2.2. You acknowledge that the Platform shall not be liable for any claims, damages, losses, or expenses arising from or related to the quality of the Products provided by the Vendors. This includes but is not limited to, any instances where Products are found to be substandard, defective, or not as described.
- 4.2.3. You agree to indemnify and hold the Platform harmless from any claims, damages, losses, or expenses arising from or related to the quality of the Products listed on the Platform. This includes legal fees and costs associated with defending against such claims.
- 4.2.4. Hubeco may implement quality assurance programs/inspections, including random Product sampling and testing, to ensure that the Products listed by Vendors meet certain quality standards. However, such inspections do not create any liability or responsibility on the part of the Company for the quality of the products.
- 4.2.5. In the event of any Buyer complaints regarding Product quality, the Vendors are responsible for handling and resolving such complaints.
- 4.2.6. You understand that as a Buyer, you can expect that all Products listed on the Platform meet high standards of quality and compliance as they are certified by the relevant authorities. This commitment ensures that the Products you purchase are reliable and meet the expected quality benchmarks.
- 4.2.7. As a Buyer utilizing the Platform, you acknowledge that all Product descriptions, including claims of green certifications or other internationally recognized declarations such as Life Cycle Assessment (LCA), Environmental Product Declaration (EPD), and other relevant certifications issued by recognized third-party authorities, are provided solely by the Vendors. You understand that while the Platform facilitates transactions for Products labelled as “green” or environmentally friendly, it operates solely as an aggregator and does not verify, validate, or endorse any green certifications or environmental claims associated with these Products. The Company expressly disclaims any responsibility for the accuracy, authenticity, or validity of any green certification or environmental claim presented by the Vendor.
- 4.2.8. You understand and acknowledge that while the Company performs reasonable due diligence in gathering this information and onboarding Products with green certifications, Life Cycle Assessment (LCA), and Environmental Product Declaration (EPD), it is your responsibility to review all Product features including sustainability information before making a purchase.
- 4.2.9. The Company expressly disclaims any responsibility for the accuracy, authenticity, or validity of any green certification or environmental claim presented by the Vendor. Any reliance on such certifications is undertaken at your own risk. Furthermore, you agree that the Company shall not be liable for any discrepancies, misrepresentations, or errors in the certifications or for any inaccuracies in the information provided by the Vendor or third-party authorities.
- 4.2.10. Furthermore, you acknowledge and agree that the Platform operates solely as an aggregator, facilitating a marketplace for Buyers and Vendors to buy and sell green building Products. The green certifications or environmental claims associated with Products listed by the Vendors are issued by third-party authorities or organisations independent of the Company. The Company does not verify, validate, or endorse the certifications or the authorities issuing them.

5. ORDER, SALE, AND FULFILMENT

5.1. Placing Orders:

- 5.1.1. You are permitted to place orders for Products listed on the Platform, subject to these Terms of Use. When you place an order on the Platform and complete the payment, it constitutes a confirmed purchase
- 5.1.2. In case of online orders, the total amount of the order may include shipment charges and applicable taxes and such costs will be detailed in the order summary before finalisation. For offline orders, the Buyer requests a quote from the Vendor, and once the Vendor sends the quote with payment terms, the Buyer must approve the quote before making the payment. The Vendor is then responsible for fulfilling the order as per the agreed terms

- 5.1.3. The Platform shall provide an online payment gateway for your convenience. In the case of payments through the Platform, you are bound by Clause 7 of these Terms.
- 5.1.4. By placing an order, you understand that you are making an informed purchase based on the Product descriptions available on the Platform. In the event that you rely on certification details at the time of purchase, you understand that the Company shall not be liable for any inaccuracies or discrepancies in such information pertaining to green certifications.
- 5.2. **Fulfilment of Orders:**
- 5.2.1. You agree that the fulfilment of orders placed on the Platform is the sole responsibility of the Vendor. The Platform acts merely as an aggregator, providing a service to you, ensuring the security of payment, and assisting in the delivery of such orders.
- 5.2.2. You understand that the Platform shall not be liable for undertaking any insurance(s) for Products sold by Vendors on the Platform.
- 5.2.3. The Platform shall not be responsible regarding the accuracy of Product specifications upon dispatch and delivery. Any guarantee or warranty associated with the Products purchased by the Buyer is the sole responsibility of the Vendor.
- 5.2.4. Hubeco shall not be liable for any claims, damages, losses, or expenses arising from or related to the fulfilment of orders by the Vendors. All terms, including price, shipping costs, payment methods (including online and offline payment options), delivery details, and warranties, are proposed by the Vendors and agreed upon by the related parties.
- 5.2.5. Buyer acknowledges and agrees that for every order placed on the Platform, an invoice will be automatically generated and made available to the Buyer. Buyer can access the invoice for each order under the "Orders" section in their Account on the Platform.
- 5.2.6. In cases where your order involves advance or partial payments, a receipt for the payment will be provided to the Buyer. This receipt will acknowledge the payment but will not constitute the final invoice. Once the full payment has been completed, a final invoice will be generated and made available in the Buyer's Account, reflecting the total amount paid and serving as an official record of the transaction.
- 5.2.7. If the order involves multiple shipments or payments, separate invoices will be issued as applicable. Please ensure to review the invoices for accuracy and retain them for your records.
- 5.3. **Coupons and Discounts:**
- 5.3.1. The Platform allows Buyers to avail of promotional discounts and coupon codes during the checkout process, if made available by the Vendors. These discounts and codes are offered to frequent buying customers and are governed by specific terms and conditions, including details on usage, limitations, applicability, restrictions, and validity. You may receive bulk discount pricing from the Vendors. The Company reserves the right to update these terms based on factors such as usage patterns, regulatory requirements, and other considerations, with changes communicated to you without prior notice.
- 5.4. **Terms for Sale:**
- 5.4.1. Upon placing an order to buy a product from the Platform, you will receive an email confirming the receipt of your order, providing details of your order. This order confirmation email serves as an acknowledgement that you have successfully placed the order. A confirmation email will also be sent to you upon dispatch. If your order is dispatched in multiple packages, you may receive separate dispatch confirmation emails for each package.
- 5.4.2. You understand that the prices of the Products displayed on the Platform include applicable taxes. It is the responsibility of the Vendors to incorporate the required taxes and any other charges when listing the Product(s). The Company disclaims any liability for the accuracy or completeness of tax calculations and charges applied by the Vendors.
- 5.4.3. Please note that the Products are sold only in quantities as provided in the terms and conditions of the Vendor. This applies both to the number of Products ordered within a single order and the placing of several orders for the same Product where the individual orders hit a quantity limit as set by the Vendor.
- 5.4.4. We do not make any representation or warranty as to specifics of the Products proposed to be sold or offered to be sold or purchased on the Platform. We do not implicitly or explicitly support or endorse the sale or purchase of any Product on the Platform. Further, we accept no liability for any errors or omissions, whether on behalf of the Vendor or other third parties.
- 5.4.5. We are not responsible for any non-performance or breach of any contract entered into between Buyers and Vendors. We cannot and do not guarantee that the concerned Buyers and/or Vendors will perform any transaction concluded on the Platform.
- 5.4.6. We do not at any point of time during any transaction between Buyer and Vendor, come into or take possession of any of the Products or services offered by the Vendor nor do we at any point gain title to or have any rights or claims over the Products or services offered by the Vendor to the Buyer.
- 5.4.7. In the event that the Buyer needs to communicate off the Platform with the Vendor for the purposes including but not limited to sharing technical documents such as CAD drawings or other technical files, they may do so adhering to the requirement of keeping the Company informed about the nature of their off-Platform communications. Please note that this off Platform communication shall not take place unless Buyer makes the partial/advance payment as the case may be.
- 5.5. **Availability and delays:**
- 5.5.1. You acknowledge and agree that the Vendors shall be solely responsible for maintaining the availability of their products and for providing accurate and up-to-date information regarding the availability of the Products or any other relevant details. It is the Vendors' obligation to ensure that such information is promptly uploaded and maintained when listing their Products on the Platform. The Platform shall not be liable for any inaccuracies, omissions, or misrepresentations related to the availability of the Products provided by the Vendors.
- 5.5.2. In the event of delays by the Vendors in delivering the Products, the Vendor will communicate the delay to you. You then have the option to either wait or cancel the order. If you agree to wait, the order will proceed as planned. If you opt to cancel the order due to the delay, you may do so in accordance with the terms and conditions outlined in our [Delivery & Shipping Policy](#) and the Vendor's return and cancellation policy.
- 5.6. **Dispute between Vendors and Buyers:**
- 5.6.1. In the event of any conflict arising between a Buyer and a Vendor, the Company will facilitate resolution through a structured procedure. Upon notification from the involved parties, the Company's support staff will promptly investigate the conflict, by reviewing the terms and conditions stipulated on the Platform and outlined in agreements with the involved parties. Acting as a mediator, the Company will try to foster constructive dialogue between the parties with the goal of reaching a mutually agreeable resolution that aligns with Platform policies and contractual obligations. If mediation efforts prove successful, the Company will assist in implementing the agreed-upon solution. In cases where resolution cannot be achieved through mediation, the Company may propose alternative courses of action or escalate the matter as needed.

- 5.6.2. Throughout the mediation process, the involved parties are expected to cooperate fully with the Company and adhere to any decisions or resolutions reached in accordance with Platform terms and contractual agreements. In instances where disputes remain unresolved despite mediation and alternative efforts, the Company retains the authority to make a final determination based on the information gathered during the investigation. However, it is important to note that the Company's role is strictly as a facilitator, and it has no obligation to actively participate in or be bound by any proceedings. The primary aim of this facilitation is to assist the parties in achieving an amicable resolution.
- 5.6.3. The Company shall not be held responsible for non-performance or breaches of contracts between Buyers and Vendors. In instances of conflict, the Company's role is limited to providing pertinent information to both parties to aid in resolving the issue. The Company does not guarantee any specifics about Vendors and disclaims any liability in this regard.

5.7. Customer Support

- 5.7.1. The Platform offers customer support services to assist Buyers with any issues related to Product quality, availability, delays returns and other information. While the Platform may facilitate communication between Buyers and Vendors, it does not assume responsibility for resolving such disputes.
- 5.7.2. The Platform provides Buyers with an option to enquire about status of their orders through the online chat support functionality available on the Platform. Buyers may inquire about Products available on the Platform through the designated chat support feature. This chat support feature is designed to address queries related to the status of orders, including any delays or issues with delivery. Buyers can use this feature to check on the progress of their orders if they have not been received by the designated date or if they have any other concerns related to their orders. Please note that the internal chat window differs from this general website support chat, which is used for broader customer support purposes. The internal chat is accessible only when the Vendor and Buyer are logged into their respective modules on the Platform.
- 5.7.3. While the Platform provides this chat support functionality, it does not monitor, verify, or endorse the content of these communications. The Company shall not be liable for any issues, misunderstandings, or disputes arising from these direct communications.

6. RETURN / REFUND / CANCELLATION OF ORDERS

- 6.1. Subject to these Terms and the terms outlined in the Delivery & Shipping Policy and Return, Refund and Cancellation Policy, the Platform permits you to initiate return and/or cancellations of the Products, ordered by you as per the applicable return and cancellation policy of the concerned Vendor. You must adhere to the specified timeframes detailed in the terms and conditions set by both the Platform and Vendors. Refunds, if applicable, will be determined by the respective Vendors.
- 6.2. You understand that if your refund is not processed by the Vendor within a specified timeframe, we shall issue a refund directly to you upon Vendors' confirmation that they have received the returned product in its original state and is not defective.
- 6.3. The Company will facilitate mediation between Buyers and Vendors to address any issues concerning unprocessed returns or refunds. This mediation will be conducted through the Platform's support channels or directly with administrative support staff.
- 6.4. Please read our, [Delivery & Shipping Policy](#) and [Return, Refund and Cancellation Policy](#) to know more.

7. PAYMENT TERMS

- 7.1. You acknowledge that the registration on the Platform is free of charge.
- 7.2. You are authorised to use valid credit/debit cards, or any other accepted payment methods, including online banking facilities, for transactional activities such as buying any Product(s) on our Platform. You are required to provide accurate and complete details of your credit/debit cards, Unified Payment Interface (UPI) details (if applicable) or online banking accounts. It is your responsibility to ensure the correctness of the information provided, and any incurred costs, expenses, losses, or damages resulting from the submission of incorrect details are solely your responsibility.
- 7.3. We disclaim any responsibility and liability for any loss or damage incurred by you during the utilisation of available payment methods on the Platform. This includes but is not limited to, instances such as:
- 7.3.1. Lack of authorization for a transaction;
 - 7.3.2. Exceeding the mutually agreed preset limit between you and the respective bank;
 - 7.3.3. Payment issues arising from the transaction; and/or
 - 7.3.4. Transaction being declined due to any other reasons.
- 7.4. All payments made against the purchases on the Platform by you shall be compulsorily in **Indian Rupee (INR)**. The Platform will not facilitate transactions concerning any other form of currency with respect to the purchases made on the Platform. If you choose to pay using a different currency, the applicable conversion rate will apply, and any conversion costs will be borne by you alone.
- 7.5. We use PayU as a provider of payment gateway services ("**Payment Processor**") on the Platform. You acknowledge and agree that any payment made on the Platform shall also be subject to the terms and conditions of PayU which can be found [here](#).
- 7.6. By accepting these Terms, you expressly authorise us and the Payment Processor to electronically collect, process, facilitate, and remit payments, including the transaction amount for the orders placed, through electronic means on the Platform.
- 7.7. You acknowledge, understand, and agree that the payment facility provided by us constitutes neither a banking nor financial service. Instead, we function as a facilitator, offering an electronic, automated online payment, and remittance facility for transactions on the Platform through the existing authorised banking infrastructure and credit card payment gateway networks. It is imperative to clarify that, in providing the payment facility, we assume neither the role of a trustee nor engage in a fiduciary capacity concerning the transaction, thereby absolving itself from such responsibilities.
- 7.8. We affirm that the information provided by you in this regard will be treated as confidential and will not be divulged to any third party, except as necessitated by the applicable laws, regulations, and/or processes of any government authority, and/or in connection with any judicial proceedings pertaining to legal actions, suits, and/or proceedings arising from or related to these Terms.
- 7.9. We diligently report and pursue both confirmed and suspected instances of credit/debit card fraud. We may request additional authorization from you and the decision to seek further authorization rests solely with us. We retain the right to annul, postpone, decline delivery, or retract any transaction in case of suspected fraud. We shall not be held liable to you for any losses arising from such cancellation.
- 7.10. During the transaction process, we collect specific information such as user ID, time, date, IP address, and other relevant details aimed at identifying individuals involved in fraudulent activities. In cases where a transaction is suspected to be fraudulent, all records will be provided, with or without a notice, to law enforcement agencies and the credit/debit card company for a thorough fraud investigation. We are committed to collaborating with authorities to ensure the prosecution of offenders to the maximum extent permitted by law.
- 7.11. You can manage your payment settings through your Accounts. Payments are processed securely through the Platform's designated payment gateway.
- 7.12. We reserve the right to periodically review and adjust pricing terms to adapt to market dynamics and service enhancements. You will receive timely notifications regarding any changes, and updates will be accessible through the Platform, but this will not affect payment for Services that have been previously paid.
- 7.13. The Platform will utilise the Payment Processor for all Buyer's Chargebacks. If the same is approved by the Company, the refund will be processed to the original source of payment, with transaction charges deducted.

8. CHARGEBACK POLICY

8.1. Chargeback by Buyer:

- 8.1.1. A chargeback by Buyers ("**Buyer's Chargeback**") is a request initiated by Buyers to reverse a transaction due to specific issues, as outlined in the clause 8.1.3.
- 8.1.2. You acknowledge that any Buyer's Chargeback must be initiated within 7 days from the transaction date. The requests for Buyer's Chargeback can be submitted by contacting Hubeco customer service.
- 8.1.3. Subject to terms enumerated in our [Return, Refund and Cancellation Policy](#) and upon receiving a Buyer's Chargeback request, our support team will determine whether such request is eligible or not. To determine the eligibility, following factors (including but not limited to) are taken into consideration-
 - 8.1.3.1. If you purchased a Product and it is not delivered by the Vendor within the estimated delivery date;
 - 8.1.3.2. If the Product delivered by the Vendor is different from the description of the Product that was ordered by you; and/or
 - 8.1.3.3. If the Vendors fail to meet the quality standards of the product and you are not satisfied.
- 8.1.4. Further, Hubeco's support team will conduct a thorough review of the provided evidence and may contact you for additional information. You may be required to provide evidence to substantiate your claim, which may include photographs, payment records, or any other relevant documentation. Optionally, we may require the Vendors to furnish such required information and documents to support their claim. The review process will be completed within 14 days of receiving the Buyer's Chargeback request.
- 8.1.5. If Buyer's Chargeback request is approved, you will receive a full refund within 7 business days from the Company. If the request is denied, a detailed explanation will be provided to you, and the transaction will remain unchanged.
- 8.1.6. In the event of a disagreement, Buyers and Vendors are encouraged to resolve the issue amicably through our dispute resolution process. If the dispute is not resolved, Hubeco will render a final decision based on the available evidence. This decision will be binding on both parties.
- 8.1.7. To minimise Buyer's Chargebacks, you are advised to thoroughly review Product details and Vendor ratings before making a purchase. You are required to cooperate with Hubeco during the investigation process.

9. LICENCE FOR PLATFORM ACCESS

Subject to your compliance with these Terms, we provide you with a limited licence to access and make personal use of this Platform. However, you are not authorised to download any content (other than page caching) or modify the Platform, or any portion of it, except with our express written consent. This licence explicitly excludes any resale or commercial use of this Platform or its contents, the collection and use of any product listings, descriptions, or prices, any derivative use of this Platform or its contents, any downloading or copying of Account information for the benefit of another seller, or any use of data mining, robots, or similar data gathering and extraction tools.

10. INTELLECTUAL PROPERTY RIGHTS

10.1. Ownership Rights:

- 10.1.1. You acknowledge that no ownership of the Platform is being transferred. All rights, Intellectual Property, and interests in the Platform remain the exclusive property of the Company, its affiliates, or its licensors.

10.2. Intellectual Property Rights:

- 10.2.1. All rights, title, and interest in and to the Platform, including any and all copyrightable materials or any other content thereof which is or may be subject to any intellectual property rights under any applicable law (including any artwork, graphics, images, website templates, and widgets, literary work, source, and object code, computer code (including HTML), applications, audio, music, video and other media, designs, animations, interfaces, documentation, derivatives and versions thereof, the "look and feel" of the Platform Services, methods, products, algorithms, data, interactive features and objects, advertising and acquisition tools and methods, inventions, trade secrets, logos, domains, customised URLs, trademarks, service marks, trade names and other proprietary identifiers, whether or not registered and/or capable of being registered (collectively, "**Intellectual Property**"), and any derivations thereof, are owned by and/or licensed to the Company.
- 10.2.2. Subject to the provisions of these Terms, we grant you a limited, non-exclusive, non-transferable licence to access and use our Platform strictly for its intended purposes. This licence explicitly does not confer any ownership rights to you, and any unauthorised use constitutes a material breach of these Terms.
- 10.2.3. All copyright and other intellectual property rights in the material on our Platform are reserved.
- 10.2.4. All intellectual property rights discovered, developed, or otherwise coming into existence as a result of, for the purposes of, or in connection with, the Platform or the provision of any Services will automatically vest in and are assigned to us, including any enhancements, improvements and modifications to the Intellectual Property. You must not represent to anyone or in any manner whatsoever that you are the proprietor of the Platform and/or Intellectual Property.
- 10.2.5. We respect the intellectual property rights of others, and you are expected to do the same. Uploading, posting, or otherwise transmitting any content that infringes on the Company's or any third party's intellectual property rights is strictly prohibited. We reserve the right to promptly remove any infringing content.
- 10.2.6. These Terms of Use permit you to use the Platform for your personal use only. This means you are not permitted to resell or give away any of the content you view or download. You are not permitted to reproduce, modify, create derivative works of, publicly display, publicly perform, or republish any of the material on our Platform, except as follows:
 - 10.2.6.1. Your computer may store copies of such materials in RAM incidental to your accessing and viewing those materials.
 - 10.2.6.2. You may store files that are automatically cached by your Web browser for display enhancement purposes.
 - 10.2.6.3. You may print or download a reasonable number of pages of the Platform for your own personal use and not for further reproduction, publication, or distribution.
 - 10.2.6.4. If we provide desktop, mobile, or other applications for download, you may download a single copy to your computer or mobile device solely for your own personal, non-commercial use, provided you agree to be bound by our end user licence agreement, if any, for such applications.
 - 10.2.6.5. If we provide social media features with certain content, you may take such actions as are enabled by such features.
- 10.2.7. You must not:
 - 10.2.7.1. Modify copies of any materials from this Platform.
 - 10.2.7.2. Use any illustrations, photographs, video or audio sequences, or any graphics separately from the accompanying text.
 - 10.2.7.3. Delete or alter any copyright, trademark, or other proprietary rights notices from copies of materials from this Platform.
- 10.2.8. These Terms do not convey any right or interest in or to the Company's Intellectual Property (or any part thereof), except only for the limited licence expressly granted above. Nothing in these Terms constitutes an assignment or waiver of the Company's Intellectual Property rights under any law.

10.3. Use of Your Intellectual Property:

- 10.3.1. You retain ownership rights to the Content. By providing us with your Content, you grant us a worldwide, royalty-free, perpetual, irrevocable, and sublicensable right to use, reproduce, modify, adapt, publish, translate, distribute, perform, and display such Content. To the extent that any Content includes personal information of you or third party, it will be handled in accordance with our [Privacy Policy](#).
- 10.3.2. You acknowledge and agree that:
 - 10.3.2.1. if you elect to upload any information or any Content to the Platform you:
 - 10.3.2.1.1. represent and warrant that you either have the rights in that information or Content or have the necessary permission to upload, post, transmit or otherwise make available that information or Content via the Platform;
 - 10.3.2.1.2. are solely responsible for that information or Content and that we will not be liable for any loss, expenses, liabilities, costs, or damages that are caused by the information you provide on the Platform; and
 - 10.3.2.1.3. you have procured all necessary rights from third parties, which are from time to time required in order for us to be able to provide the Platform or the Services to you.
 - 10.3.2.2. For the avoidance of doubt, and in accordance with all applicable privacy laws, it is your responsibility to ensure that you have received prior consent from the third party required for you to provide to us their information for use under these Terms.
 - 10.3.2.3. You agree that we may refer to you, your business name, publish your logo and/or trademark and make reference to you as a customer of ours in any communications or publications for the purposes of marketing or promoting our business provided that any proposed communication or reference is approved in writing in advance by you.

11. REPORT COPYRIGHT INFRINGEMENTS

- 11.1. You agree not to upload or transmit any communications or your Content that infringes or violates the rights of any party while using the Platform. We do not permit infringing materials to remain on the Platform and encourage users to promptly notify us if they believe any materials on the Platform, including advertisements or linked Content, infringe third-party copyrights.
- 11.2. Upon receipt of a proper notice of claimed infringement under the Copyright Act, 1957 (the “**Act**”), we will respond promptly to remove or disable access to the allegedly infringing material. We will follow the procedures specified in the Act to resolve the claim between the notifying party and the alleged infringer responsible for the Content.
- 11.3. To report copyright infringement issues, please reach out to us at info@hubeco.market.
- 11.4. We reserve a right to terminate contractual relationships with third parties who repeatedly infringe the copyrights of others.
- 11.5. In the event that we receive notice regarding a copyright infringement, we may cancel your Account, or remove any Content in our sole discretion, with or without prior notice to you. Any notices filed pursuant to this, may be deemed accepted, applicable, and compliant with the Act, or not, at our sole reasonable discretion. We reserve the right to notify the person or entity providing the infringement notice of such an action and provide any details included therein.
- 11.6. The Company has no obligation to monitor or enforce any intellectual property rights that may be associated with the Content you provide to us, but the Company does have the right to enforce such rights through any means it sees fit.

12. ACCEPTABLE AND PROHIBITED USES

- 12.1. Subject to your compliance with these Terms, including the ‘**Prohibited Uses**’ defined in Clause 12.6 below, we grant you a non-exclusive, non-transferable, revocable licence to:
 - a. access the Services; and
 - b. download any portion of the Content for utilising our Services.
- 12.2. Subject to compliance with these Terms, we may offer to provide the Services, as more comprehensively described on the Platform. These Services, selected by you, are intended solely for your own use and are not to be used or exploited for the benefit of any third party.
- 12.3. The provision of Services will be carried out on a best-efforts basis. We do not provide any warranties for the continuous availability or the accuracy of any content on the Platform or Content
- 12.4. You agree to be polite and respectful when you communicate or interact with others on the Platform or otherwise as a result of accessing our Services.
- 12.5. You agree to not encourage others to create an Account, leave a review, or otherwise interact with a third-party website, application, or service unless authorised by us.
- 12.6. **Prohibited Uses:**
 - 12.6.1. While using the Platform and/or Services, you consent to abstain from activities that contravene these Terms, encompassing fraudulent acts, spamming, hacking, and any actions that could disrupt the operations of the Platform and/or Services;
 - 12.6.2. While using the Platform and/or Services, you are strictly prohibited from assuming the identity of others, utilising counterfeit accounts, or indulging in any conduct that may falsely represent their identity;
 - 12.6.3. You shall not edit or otherwise modify any material on our Platform unless you own or control the relevant rights in the material;
 - 12.6.4. You are prohibited from probing, scanning, or testing the vulnerability of our Platform and/or Services without our permission;
 - 12.6.5. You are prohibited from copying, modifying, creating derivative works of, downloading, adapting, reverse engineering, emulating, migrating to another service, translating, compiling, decompiling, or disassembling the Platform, the Services (or any part thereof), any content offered by Platform or third party services for use and/or any part thereof in any way, or publicly display, perform, transmit or distribute any of the foregoing without our prior written and specific consent and/or as expressly permitted under these Terms;
 - 12.6.6. You agree not to submit, transmit, or display or use any Content in a context, that may be deemed as defamatory, libellous, obscene, harassing, threatening, incendiary, abusive, racist, offensive, deceptive, or fraudulent, encouraging criminal or harmful conduct, or which otherwise violates the rights of the Platform or any third party (including any intellectual property rights, privacy rights, contractual or fiduciary rights), or otherwise shows any person, entity or brand in a bad or disparaging light, without their prior explicit approval;
 - 12.6.7. You agree not to publish and/or make any use of the Platform and/or Services on any website, media, network, or system other than those provided by the Company, and/or frame, “deep link”, “page-scrape”, mirror and/or create a browser or border environment around any of the Services and/or Platform (or any part thereof), except as expressly permitted by the Company, in advance and in writing;
 - 12.6.8. You are prohibited from using our Platform and/or Services to copy, store, host, transmit, send, use, publish, or distribute any material that consists of or is linked to any spyware, computer virus, Trojan horse, worm, keystroke logger, rootkit, or other malicious computer software;
 - 12.6.9. You are prohibited from decrypting or deciphering any communications sent by or to our Platform without our permission;
 - 12.6.10. You agree not to purchase search engine or other pay-per-click keywords (such as Google AdWords), or domain names that use Company or Company’s marks and/or variations and misspellings thereof;
 - 12.6.11. You shall not conduct any systematic or automated data collection activities, which include without limitation scraping, data mining, data extraction, and data harvesting on or in relation to our Platform without our express written consent;
 - 12.6.12. You shall not use our Platform except by means of our public interfaces;
 - 12.6.13. You shall not use data collected from our Platform for any direct marketing activity, including without limitation email marketing, SMS marketing, telemarketing, and direct mailing;

- 12.6.14. You agree not to remove or alter any copyright notices, watermarks, restrictions; and signs indicating proprietary rights of any of our licensors, including copyright mark [©], creative commons [(cc)] indicators, or trademarks [* or ™] contained in or accompanying the Services;
- 12.6.15. You must not do anything that interferes with the normal use of our Platform and/or Services;
- 12.6.16. Systematically retrieve data or other content from the Services to create or compile, directly or indirectly, a collection, compilation, database, or directory without written permission from us; and
- 12.6.17. Engage in any automated use of the system, such as using scripts to send comments or messages, or using any data mining, robots, or similar data gathering and extraction tools.

Additional activities that are prohibited

You may not access or use the Platform and/or our Services for any purpose other than that for which we make the Services available. The Services may not be used in connection with any commercial endeavours except those that are specifically endorsed or approved by us.

As a User of the Platform, you agree not to:

- a. Trick, defraud, or mislead us and other users, especially in any attempt to learn sensitive account information such as user passwords.
- b. Circumvent, disable, or otherwise interfere with security-related features of the Platform, including features that prevent or restrict the use or copying of any content or enforce limitations on the use of the Platform and Services and/or the content contained therein.
- c. Disparage, tarnish, or otherwise harm, in our opinion, us and/or the Services. Use any information obtained from the Platform in order to harass, abuse, or harm another person.
- d. Make improper use of our Platform and/or Services or submit false reports of abuse or misconduct.
- e. Use the Services in a manner inconsistent with any applicable laws or regulations.
- f. Engage in unauthorised framing of or linking to the Services.
- g. Upload or transmit (or attempt to upload or to transmit) viruses, Trojan horses, or other material, including excessive use of capital letters and spamming (continuous posting of repetitive text), that interferes with any party's uninterrupted use and enjoyment of the Platform and/or Services or modifies, impairs, disrupts, alters, or interferes with the use, features, functions, operation, or maintenance of the Platform and/or Services.
- h. Attempt to impersonate another user or person or use the username of another user.
- i. Upload or transmit (or attempt to upload or to transmit) any material that acts as a passive or active information collection or transmission mechanism, including without limitation, clear graphics interchange formats ('gifs'), 1×1 pixels, web bugs, cookies, or other similar devices (sometimes referred to as 'spyware' or 'passive collection mechanisms' or 'pcms').
- j. Interfere with, disrupt, or create an undue burden on the Platform or the networks or services connected to the Platform.
- k. Harass, annoy, intimidate, or threaten any of our employees or agents engaged in providing any portion of the Services to you.
- l. Attempt to bypass any measures of the Platform and/or Services designed to prevent or restrict access to the Platform and/or Services, or any portion of the Platform and/or Services.
- m. Copy or adapt the Software, including but not limited to Flash, PHP, HTML, JavaScript, or other code.
- n. Except as permitted by applicable law, decipher, decompile, disassemble, or reverse engineer any of the software comprising or in any way making up a part of the Platform and Services.
- o. Except as may be the result of the standard search engine or Internet browser usage, use, launch, develop, or distribute any automated system, including without limitation, any spider, robot, cheat utility, scraper, or offline reader that accesses the Platform, or use or launch any unauthorised script or other software.
- p. Make any unauthorised use of the Platform and/or Services, including collecting usernames and/or email addresses of users by electronic or other means for the purpose of sending unsolicited emails, or creating Account(s) by automated means or under false pretences.

You acknowledge and agree that your failure to abide by any of the foregoing or any misrepresentation made by you herein may result in the immediate termination of your Account and/or any Services provided to you – with or without further notice to you, and without any refund of amounts paid on account of any such Services.

13. PROFANITY POLICY

- 13.1. We strictly prohibit the use of racist, hateful, sexual, or obscene language in any public area on the Platform. This policy encompasses text within listings, Dashboards, reviews, customer support and all other sections of the Platform that may be viewed by other users. You are encouraged to report any violations of this policy for prompt review, including without limitation:
 - 13.1.1. offensive display names; and/or
 - 13.1.2. offensive language in a listing or otherwise.
- 13.2. If any feedback comment, communication between users on the Website, or email exchange related to transactions conducted on the Website includes profanity, you are encouraged to submit a formal request at info@hubeco.market.
- 13.3. Disciplinary action may result in the indefinite suspension of your Account, temporary suspension, or a formal warning.

14. EMAIL ABUSE AND THREAT POLICY

- 14.1. Private communication, including email correspondence and chat support, conducted by you is not directly regulated by us. We strongly encourage you to maintain a professional, courteous, and respectful tone when communicating. While we generally do not intervene in private communications, we will thoroughly investigate and take appropriate action against certain types of unwanted emails and communications that violate any or all of our policies.
- 14.2. One such violation includes without limitation, spoof (fake) emails. It is essential to note that we will never request sensitive information from you through email. If you ever receive a spoof email claiming to be from us and asking for sensitive information, we urge you to promptly report it to us on info@hubeco.market for further investigation and necessary action.

15. FAIR USAGE POLICY

In our continuous efforts to provide an optimal user experience, we monitor your behaviour on our Platform. This involves maintaining records of Buyers' order history and other details related to the usage of the Platform. This practice is in place to ensure that all Buyers engage with our services in good faith.

In cases where there is evidence of abuse of our Platform, or a violation of these Terms, including instances of excessive returns or unwarranted refusal to accept shipments that are not incorrect or defective, we reserve the right to discontinue providing our Services to you.

16. CLAIMS AGAINST OBJECTIONABLE CONTENT

- 16.1. While you have the option to refer to the Product specification page on the Platform to review any Product details provided by the Vendor, including but not limited to:
 - 16.1.1. The total price in a single figure for any goods or services, along with the breakup of the price, displaying all mandatory and voluntary charges such as delivery charges and applicable taxes, as applicable. These details will also be available on the invoice issued to you;
 - 16.1.2. Mandatory notices and information mandated by applicable laws;
 - 16.1.3. Products and services offered by the Vendor, including the place of origin, which is essential for enabling the Buyer to make an informed decision at the pre-purchase stage; and/or
 - 16.1.4. Importer information and guarantees related to the authenticity or genuineness of the imported Products;

If you encounter objectionable content, including content which falls within the provisions of Clause 11 and 12, please contact us at info@hubeco.market.

17. BUYER REPRESENTATIONS

- 17.1. By using the Platform, you represent and warrant that:
 - 17.1.1. All the information you submit will be true, accurate, current, and complete;
 - 17.1.2. You will maintain the accuracy of such information and promptly update such information as necessary;
 - 17.1.3. You have the legal capacity and you agree to comply with these Terms;
 - 17.1.4. You will cooperate with the Platform for any reasonable requests including requests of information regarding the Products and related services.
 - 17.1.5. You shall not, directly or indirectly, engage, participate, or negotiate in any transaction with a third party introduced or identified by the Company, without the express written consent of the Company. This includes but is not limited to placing and accepting orders, entering into contracts, or engaging in business transactions with such third parties outside of the Platform.
 - 17.1.6. Your use of the Platform shall be solely for your own purposes;
 - 17.1.7. If you register on our Platform as the representative of any entity, you represent that you are authorised to act on behalf of such entity and that such entity shall be bound to comply with these Terms upon your acceptance of these Terms;
 - 17.1.8. You are not a minor in the jurisdiction in which you reside and you are responsible for adhering to your country's laws when accessing our Platform and utilising our Services, given that the Company is located in India;
 - 17.1.9. You will not access the Platform through automated or non-human means, whether through a bot, script, or otherwise;
 - 17.1.10. You will not use the Platform for any illegal or unauthorised purpose; and
 - 17.1.11. Your use of the Services and/or Platform will comply with all applicable laws and regulations (including, without limitation, all applicable laws regarding online conduct and acceptable content, licensing, privacy, data protection, the transmission of technical data exported from India or the country in which you reside, the use or provision of financial services, notification and consumer protection, unfair competition, and false advertising).

18. LINKS TO THE THIRD-PARTY WEBSITES

- 18.1. We may provide links to third-party sites on our Platform as a convenience to you. You hereby acknowledge that when you access third-party sites, you do so at your own risk.
 - 18.1.1. You understand that external sites are beyond our control, and we are not accountable for the content, functionality, accuracy, legality, appropriateness, or any other aspect of such external websites or resources. The inclusion of any link does not imply endorsement or sponsorship by us or any association with its operators.
 - 18.1.2. We may provide access to services from external or third-party service providers, seamlessly integrated into our Platform. You acknowledge and agree that any issues or non-performance of such services will be addressed on a best-effort basis, subject to the pass-through obligations as agreed with the external/third-party service providers.
 - 18.1.3. You are advised to exercise caution when navigating external sites and using integrated services and carefully review the terms and conditions and privacy policies of all off-website pages and other websites that they visit.
 - 18.1.4. We reserve the right to modify or remove links to third-party sites and services at any time without notice. Continued use of our Platform constitutes acceptance of any modifications to the links provided.
 - 18.1.5. You acknowledge that we collaborate with external or third-party service providers to enhance the user experience. Any collaborative efforts aim to improve services but are subject to the terms and conditions agreed upon with the respective service providers.
 - 18.1.6. You may be notified when they are leaving our Platform and redirected to access a third-party site or service. Additionally, we are not responsible for any content, advertisements, products, or other materials available on external sites or through integrated services.

19. PLATFORM AVAILABILITY

- 19.1. While we do our best to keep the Platform and Services up and running all the time, we can't promise it will always be perfect. Sometimes, there might be interruptions, delays, or errors, or the Platform might not be free of viruses. If there are any problems, we'll try our best to fix them as soon as possible.
- 19.2. You need the internet to use the Platform, and you'll have to cover the costs for that. We won't be responsible for those costs.
- 19.3. The Platform might not work with every device or software out there, and sometimes we'll need to update it, which might make some parts temporarily unavailable.
- 19.4. We're not liable for any business losses or other indirect losses you might experience while using the Platform.
- 19.5. You're responsible for having the proper internet connection and devices to use our Services. If you use wireless devices, you might have to pay extra fees to your mobile network. And while we try to make sure our Services work on most devices, we can't guarantee they'll work perfectly on every single one.

20. SECURITY OF YOUR INFORMATION

Please take a moment to review our [Privacy Policy](#) which governs not only your visit to the Platform but also details the terms related to the collection of information from you, security measures, access to your data, and the transfer of your information. Rest assured, any personal information or data you share with us while using the Platform is treated with the utmost confidentiality and is strictly handled in accordance with our Privacy Policy, as well as applicable laws and regulations. If you have any objections to the transfer or use of your information, we kindly advise against using the Platform. Your privacy and trust are of utmost importance to us, and we strive to maintain the highest standards of data protection and security.

21. TERMINATION

- 21.1. These Terms shall remain in full force and effect while you use the Platform and/or Services. WITHOUT LIMITING ANY OTHER PROVISION OF THESE TERMS, WE RESERVE THE RIGHT TO, IN OUR SOLE DISCRETION AND WITHOUT NOTICE OR LIABILITY, DENY ACCESS TO AND USE OF THE SERVICES AND/OR PLATFORM (INCLUDING BLOCKING CERTAIN IP ADDRESSES), TO ANY PERSON FOR ANY REASON OR FOR NO REASON, INCLUDING WITHOUT LIMITATION FOR BREACH OF ANY REPRESENTATION, WARRANTY, OR COVENANT CONTAINED IN THESE TERMS OR OF ANY APPLICABLE LAW OR REGULATION. WE MAY TERMINATE YOUR USE OR PARTICIPATION IN THE SERVICES AND ANY CONTENT OR INFORMATION THAT YOU POSTED AT ANY TIME, WITHOUT WARNING, IN OUR SOLE DISCRETION.
- 21.2. If we terminate or suspend your Account for any reason, you are prohibited from registering and creating a new Account under your name, a fake or borrowed name, or the name of any third party, even if you may be acting on behalf of the third party. In addition to terminating or suspending your Account, we reserve the right to take appropriate legal action, including without limitation pursuing civil, criminal, and injunctive redress.
- 21.3. We may terminate the access to our Platform and/or Services by providing written notice to you if:
 - 21.3.1. you fail to remedy a material breach of these Terms within two (02) days of being notified of the breach;
 - 21.3.2. you become bankrupt, enter a voluntary arrangement, are in liquidation or receivership, cease business, threaten to cease business, or are otherwise insolvent.
- 21.4. You have the liberty to terminate your Account(s) whenever you wish by adhering to the instructions that are clearly outlined on the Platform.
- 21.5. Clauses including Indemnity, Disclaimer, and Limitation of Liability shall survive termination of these Terms.

22. MODIFICATIONS AND INTERRUPTIONS

We reserve the right to change, modify, or remove the contents of the Platform and/or Services at any time or for any reason at our sole discretion without notice. However, we have no obligation to update any information on our Platform. We cannot guarantee that the Services will be available at all times. We may experience hardware, software, or other problems or need to perform maintenance related to the Platform, resulting in interruptions, delays, or errors. We reserve the right to change, revise, update, suspend, discontinue, or otherwise modify the Services at any time or for any reason without notice to you. You agree that we have no liability whatsoever for any loss, damage, or inconvenience caused by your inability to access or use the Platform during any downtime or discontinuance of the Platform. Nothing in these Terms will be construed to obligate us to maintain and support the Platform or to supply any corrections, updates, or releases in connection therewith.

23. WARRANTIES AND DISCLAIMERS

- 23.1. THE SERVICES ARE PROVIDED ON AN AS-IS AND AS-AVAILABLE BASIS. YOU AGREE THAT YOUR USE OF THE SERVICES WILL BE AT YOUR SOLE RISK. TO THE FULLEST EXTENT PERMITTED BY LAW, WE DISCLAIM ALL WARRANTIES, EXPRESS OR IMPLIED, IN CONNECTION WITH THE SERVICES AND YOUR USE THEREOF, INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. WE MAKE NO WARRANTIES OR REPRESENTATIONS ABOUT THE ACCURACY OR COMPLETENESS OF THE SERVICES' CONTENT OR THE CONTENT OF ANY WEBSITES OR MOBILE APPLICATIONS LINKED TO THE SERVICES AND WE WILL ASSUME NO LIABILITY OR RESPONSIBILITY FOR ANY (1) ERRORS, MISTAKES, OR INACCURACIES OF CONTENT AND MATERIALS, (2) PERSONAL INJURY OR PROPERTY DAMAGE, OF ANY NATURE WHATSOEVER, RESULTING FROM YOUR ACCESS TO AND USE OF THE SERVICES, (3) ANY UNAUTHORISED ACCESS TO OR USE OF OUR SECURE SERVERS AND/OR ANY AND ALL INFORMATION AND/OR FINANCIAL INFORMATION STORED THEREIN, (4) ANY INTERRUPTION OR CESSATION OF TRANSMISSION TO OR FROM THE SERVICES, AND (5) ANY BUGS, VIRUSES, TROJAN HORSES, OR THE LIKE WHICH MAY BE TRANSMITTED TO OR THROUGH THE SERVICES BY ANY THIRD PARTY. WE WILL NOT BE A PARTY TO OR IN ANY WAY BE RESPONSIBLE FOR MONITORING ANY TRANSACTION BETWEEN YOU AND ANY THIRD-PARTY PROVIDERS OF PRODUCTS OR SERVICES. AS WITH THE PURCHASE OF A PRODUCT OR SERVICE THROUGH ANY MEDIUM OR IN ANY ENVIRONMENT, YOU SHOULD USE YOUR BEST JUDGEMENT AND EXERCISE CAUTION WHERE APPROPRIATE.
- 23.2. You acknowledge that the Company will undertake no liability in the event there is any discrepancy or mismatch in Product information with the actual Product that may lead to a diluted customer experience which can lead to unnecessary returns and refunds.
- 23.3. You understand that while the Platform may feature Products labelled as "green" or environmentally friendly, any claims regarding green certifications, such as Life Cycle Assessment (LCA), Environmental Product Declaration (EPD), or other sustainability-related certifications, are made solely by the Vendors. The Company does not verify, validate, or endorse these certifications and disclaims any responsibility for their accuracy or authenticity.
- 23.4. The Company disclaims all liability for any inaccuracies, misrepresentations, or errors in the Product information or certifications, and shall not be held responsible for any loss, damage, or dispute arising from reliance on such information. You assume full responsibility for verifying the authenticity, accuracy, and relevance of all Product details and certifications before making any purchase decision.
- 23.5. You acknowledge and agree that it is your sole responsibility to verify all information, including any green certifications or environmental claims, provided by Vendors in relation to the Products listed on the Platform. The Company does not perform independent verification of the information or certifications uploaded by the Vendors. You are strongly advised to conduct your own due diligence before making any purchase.
- 23.6. You understand and agree that the certifications and claims made by third-party organisations are not endorsed by the Company. The Company does not assume any responsibility for the actions or omissions of third-party authorities that issue green certifications or environmental claims.
- 23.7. You understand that any contract for the sale of any Product or services shall be a strictly bipartite contract between the Vendor and the Buyer. The Platform maintains control and involvement in the negotiation or acceptance of these terms at its discretion, reserving the right to determine or provide guidance on such terms.
- 23.8. You agree not to directly or indirectly, circumvent, avoid, bypass, obviate, negotiate or enter into any contract with any Vendor registered with the Platform, initially communicated through the Platform, without the prior written consent of the Company. You acknowledge that any breach of this non-circumvention obligation will result in significant harm to the Company and agree to indemnify the Company for any losses incurred as a result of such breach.
- 23.9. You expressly agree not to place orders directly with the Vendor, once connected through the Platform. All orders, without exception, must be processed exclusively through the Platform.
- 23.10. Except as provided in these Terms, no further warranty, condition, undertaking, or term, express or implied, statutory or otherwise as to the condition, quality, performance, or fitness for the purpose of the Services provided in accordance with these Terms is given by us, other than as required by law. All implied warranties are hereby excluded.
- 23.11. We do not recommend the use of the Services for hosting personal content and shall not bear any security or integrity obligations or risks regarding breach or damage to any such content.

24. LIMITATION OF LIABILITY

- 24.1. We bear no responsibility for any secondary, resultant, or incidental harm that may occur due to the utilisation or inability to utilise the Platform and/or Services.
- 24.2. In no event will we or our directors, employees, or agents be liable to you or any third party for any direct, indirect, consequential, exemplary, incidental, special, or punitive damages, including lost profit, lost revenue, loss of data, or other damages arising from your use of the Platform and/or Services, even if we have been advised of the possibility of such damages.
- 24.3. We shall not be liable for:
 - 24.3.1. Unsuccessful transactions, delays, or financial losses due to events beyond our control or third-party services;
 - 24.3.2. The Platform not meeting individual requirements, containing defects, or causing damage due to cyber attacks or other breaches beyond our control;
 - 24.3.3. Internet transmissions not being entirely private or secure; messages may be read by others; and/or

- 24.3.4. Under various legal theories, we shall not be liable for loss of profits, revenue, goodwill, or any indirect or consequential damages arising from the use of the Platform and/or Services. You should be aware of potential risks in internet transmissions.
- 24.4. You acknowledge and agree that these limitations of liability are agreed allocations of risk constituting in part the consideration for our Services to you, and such limitations will apply even if we have been advised of the possibility of such liabilities.

25. INDEMNIFICATION

You are solely and exclusively responsible for your use of the Services:

- 25.1. You agree to defend, indemnify, and hold us harmless, including our subsidiaries, affiliates, and all of our respective officers, agents, partners, and employees, from and against any loss, damage, liability, claim, or demand received or suffered by us, including reasonable attorneys' fees and expenses, made by any third party due to or arising out of (1) your contributions; (2) your use of the Platform, Services, Platform, and/or Content; (3) any harm or damage arising from the use of Products provided by Vendors; (4) breach of these Terms; (5) any breach of your representations and warranties set forth in these Terms (6) your violation of the rights of a third party, including but not limited to intellectual property rights; (7) any overt harmful act toward any other user of the Platform with whom you connected via the Platform; or (8) any inaccuracies or errors in the results provided by the Platform. Notwithstanding the foregoing, we reserve the right, at your expense, to assume the exclusive defence and control of any matter for which you are required to indemnify us, and you agree to cooperate, at your expense, with our defence of such claims. We will use reasonable efforts to notify you of any such claim, action, or proceeding that is subject to this indemnification upon becoming aware of it.

26. DISPUTE RESOLUTION AND GOVERNING LAW

- 26.1. You expressly acknowledge and agree that we shall have the right to enforce these Terms against you.
- 26.2. These Terms shall be construed in accordance with the applicable laws of Telangana, India.
- 26.3. If any dispute or claim arises from or in connection with (i) these Terms, and/or (ii) your access to or use of our Platform and/or Services, the relevant parties shall resolve the dispute through amicable negotiations but in case the conflict continues the parties will resort for the dispute resolution procedure set out herein.
- 26.3.1. **Mediation:** In the event that the parties are unable to agree to a mutually agreeable decision and a dispute or difference arises in connection with the interpretation or implementation of these Terms, the parties agree that they will submit to a binding confidential mediation that will be held in Hyderabad, Telangana, India and in accordance with the applicable laws of India. The mediation shall be conducted in English by a mediator that is mutually agreed upon by the Parties, as far as possible. The costs of the mediation shall be borne equally by all parties. The parties hereby waive any and all right to have these Terms adjudicated by a court or jury. The mediation proceedings shall be carried out in Hyderabad, Telangana, India. In accordance with the applicable laws of India. The mediator shall issue a final decision within sixty (60) days from the commencement of mediation proceedings.
- 26.3.2. **Arbitration:** In the event that the mediation fails to resolve the dispute within the sixty (60) day period, the parties agree to submit the dispute to binding arbitration. The arbitration shall be conducted in Hyderabad, Telangana and in accordance with the applicable laws of India. The arbitration shall be conducted in English by a sole arbitrator appointed jointly by the parties, as far as possible. The arbitrator must be independent. The arbitrator must issue a final decision within one (1) month from the commencement of arbitration proceedings. The place of arbitration shall be Hyderabad, Telangana, India. The award of the arbitration proceedings will be final and binding on both parties to these Terms.

27. MISCELLANEOUS

- 27.1. You understand that we will not be liable to you if we are prevented from, or delayed in, providing the Services due to acts, events, omissions, or accidents beyond our reasonable control ("**Unavoidable Events**"). Where an Unavoidable Event occurs, we will attempt to recommence the provision of the Services as soon as reasonably practicable.
- 27.2. We may assign any or all of our rights and obligations to any person or affiliate entity at any time. If any provision or part of a provision of these Terms is determined to be unlawful, void, or unenforceable, that provision or part of the provision is deemed severable from the Terms and does not affect the validity and enforceability of any remaining provisions.
- 27.3. You acknowledge that there is no joint venture, partnership, employment, or agency relationship created between you and us as a result of these Terms or use of the Services.

28. CONTACT

If you require further information or have any inquiries or concerns regarding the Terms of Use, please do not hesitate to contact us in writing at:

Email: info@hubeco.market